

1 ENGROSSED HOUSE
2 BILL NO. 3467

By: Boles and Gise of the House
and
Pugh and Mann of the Senate

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7 An Act relating to education employees; amending
8 Section 1, Chapter 291, O.S.L. 2023, as amended by
9 Section 3, Chapter 57, O.S.L. 2025 (70 O.S. Supp.
10 2025, Section 6-104.8), which relates to maternity
11 leave; entitling certain full-time employees to paid
12 maternity leave following the adoption of a child;
13 specifying when leave must be used; clarifying
14 purpose for which sick leave may be used; and
15 providing an effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY Section 1, Chapter 291, O.S.L.
18 2023, as amended by Section 3, Chapter 57, O.S.L. 2025 (70 O.S.
19 Supp. 2025, Section 6-104.8), is amended to read as follows:

20 Section 6-104.8. A. 1. Full-time employees of a public school
21 district in this state who have been employed by the school district
22 for at least one year and have worked at least one thousand two
23 hundred fifty (1,250) hours during the preceding twelve-month
24 period;

2. Persons employed full time as classroom instructional
employees of technology center school districts supervised by the

1 State Board of Career and Technology Education who have been
2 employed by the technology center school district for at least one
3 year and have worked at least one thousand two hundred fifty (1,250)
4 hours during the preceding twelve-month period;

5 3. Persons employed as teachers by the State Department of
6 Rehabilitation Services who have been employed by the State
7 Department of Rehabilitation Services for at least one year and have
8 worked at least one thousand two hundred fifty (1,250) hours during
9 the preceding twelve-month period;

10 4. Persons employed full time as correctional teachers or
11 vocational instructors by the Department of Corrections pursuant to
12 Section 510.6a of Title 57 of the Oklahoma Statutes who have been
13 employed by a Department of Corrections facility for at least one
14 year and have worked at least one thousand two hundred fifty (1,250)
15 hours during the preceding twelve-month period; and

16 5. Persons employed full time as teachers by the Office of
17 Juvenile Affairs who have been employed by an Office of Juvenile
18 Affairs facility for at least one year and have worked at least one
19 thousand two hundred fifty (1,250) hours during the preceding
20 twelve-month period,

21 shall be entitled to six (6) weeks of paid maternity leave following
22 the birth or adoption of the employee's child, provided that the
23 child is under four (4) years of age. The six (6) weeks of paid
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1 maternity leave shall be used immediately following the birth or
2 adoption of the school district employee's child.

3 B. 1. Paid maternity leave provided pursuant to paragraphs 1,
4 2, and 3 of subsection A of this section shall be in addition to and
5 not in place of sick leave due to pregnancy, as authorized by
6 Section 6-104 of this title.

7 2. Paid maternity leave provided pursuant to paragraph 4 of
8 subsection A of this section shall be in addition to and not in
9 place of sick leave due to pregnancy, as authorized by Section
10 510.6a of Title 57 of the Oklahoma Statutes.

11 3. Paid maternity leave provided pursuant to paragraph 5 of
12 subsection A of this section shall be in addition to and not in
13 place of sick leave due to pregnancy, as authorized by Section 2-7-
14 202 of Title 10A of the Oklahoma Statutes.

15 C. 1. Employees described in subsection A of this section
16 shall have the right to utilize accrued sick leave to extend the
17 duration of their maternity leave beyond the six (6) weeks provided
18 by this section. Such sick leave may be used for recovery from
19 childbirth, bonding with a newborn or infant, or caring for a
20 newborn or infant, and shall not require additional approval from a
21 school board or employer, provided the employee has sufficient sick
22 leave to cover the extended duration. Sick leave used pursuant to
23 this subsection shall not exceed six (6) weeks, unless a licensed
24 medical professional provides written certification recommending

1 additional leave for medical necessity related to the employee's
2 recovery from child birth, or for the care of the newborn, to
3 achieve a combined twelve (12) weeks of FMLA leave in accordance
4 with paragraph 2 of this subsection.

5 2. An employee seeking to use sick leave to extend the duration
6 of their maternity leave shall notify their employer in accordance
7 with the Family and Medical Leave Act of 1993 (FMLA). FMLA leave
8 shall run concurrently with the paid sick leave extended duration.

9 D. An employee who takes maternity leave pursuant to the
10 provisions of subsection A of this section shall not be deprived of
11 any compensation or other benefits to which the employee is
12 otherwise entitled.

13 E. Each fiscal year, the Legislature shall appropriate adequate
14 funding to the Public School Paid Maternity Leave Revolving Fund
15 created in Section 6-104.9 of this title for the purpose of
16 providing paid maternity leave to eligible school district employees
17 pursuant to paragraph 1 of subsection A of this section. If the
18 Legislature does not appropriate adequate funding specifically for
19 the purpose of providing paid maternity leave to school district
20 employees, the State Board of Education shall allocate from the
21 funds appropriated to the State Board of Education for the support
22 of public school activities an amount to fully fund paid maternity
23 leave.

F. The State Board of Education, the State Board of Career and Technology Education, the Commission for Rehabilitation Services, the State Board of Corrections, and the Board of Juvenile Affairs may promulgate rules to implement the provisions of this section.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 9th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the ____ day of _____, 2026.

Presiding Officer of the Senate